

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

MARBLE BROWN

Plaintiff,

[Insert full name of plaintiff/prisoner]

-against-

CITY OF NEW YORK ET AL

Defendant(s).

[Insert full name(s) of defendant(s). If you need additional space, please write "see attached" and insert a separate page with the full names of the additional defendants. The names listed above must be identical to those listed in Part I]

- I. Parties: (In item A below, place your name in the first blank and provide your present address and telephone number. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff MARBLE BROWN

If you are incarcerated, provide the name of the facility and address:

200 Tillary St Brooklyn NY
11201

Prisoner ID Number: _____

2017 FEB 10 PM 4:50

U.S. DISTRICT COURT
E.D. NEW YORK
AFTER HOURS BOX
Rec'd 2/15/17
JRB

CIVIL RIGHTS COMPLAINT

42 U.S.C. § 1983

JURY DEMAND

YES ☒ NO ☐

If you are not incarcerated, provide your current address:

NO

Telephone Number: _____

B. List all defendants. You must provide the full names of each defendant and the addresses at which each defendant may be served. The defendants listed here must match the defendants named in the caption on page 1.

Defendant No. 1

Full Name

Job Title

Address

Defendant No. 2

Full Name

Job Title

Address

Defendant No. 3

Full Name

Job Title

Address

Defendant No. 4

Full Name

Job Title

Address

Defendant No. 5

Full Name

Job Title

Address

II. Statement of Claim:

(State briefly and concisely, the facts of your case. Include the date(s) of the event(s) alleged as well as the location where the events occurred. Include the names of each defendant and state how each person named was involved in the event you are claiming violated your rights. You need not give any legal arguments or cite to cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. You may use additional 8 ½ by 11 sheets of paper as necessary.)

Where did the events giving rise to your claim(s) occur? _____

When did the events happen? (include approximate time and date) 5-29-16

at or around 1:30 pm - 8:30 pm 1421 Hackensack St
Brooklyn NY 11233. Interfaith Hospital Atlantic Ave Brooklyn NY

STATEMENT OF CLAIM

I Margie Brown file this claim against the city of New York et al. Claim # 2016IP01670, Filed on 6-20-16. On 5-29-16 The plaintiff called 911 to report a crime of sexual abuse, After reporting the crime the crime to the defendant employees office James Office Vega Sargent Martinez and DHS shelter staff, The plaintiff was did she need FDNY EMS. The plaintiff said no to DHS staff. no to Sergeant Martinez and no to officer James. The plaintiff was illegally detained for 8 and half hours. At or around 3:30 pm the plaintiff aske officer James a direct question what was taking so long. NY NYC ADC LAW CHAPTER 49,1116 b. Officer James made false deceptive statements during duty, Officer James stated that he was waiting for information from DHS about the plaintiff. Officer James deliberately did not tell the plaintiff that he was waiting for FDNY EMS to transport the plaintiff to the hospital for Psych Evaluation. Officer James didn't not read the plaintiff the Miranda rights. Officer James didn't have a warrant to detain the plaintiff. The plaintiff was not finger printed and brought before the local courts. As is pursuant to NY CRMINAIL LAW CODE 140.15. The plaintiff was deprived DUE process U.S.C 14 Amendment. At OR AROUND 3:40 pm FDNY arrived on the scene. The plaintiff was quietly standing against the wall waiting for officer James. 2 FDNY employee Alexandria Aruline , black male John Doe. Approached the plaintiff. Alexandria Auriline stated that they were there to transport the plaintiff to the hospital. The plaintiff aske FDNY a direct question what was she going to the hospital for. The plaintiff asked the same question 5 times she was never given a direct answer. The plaintiff denied FDNY services over 6 times, FDNY Alexandria Auriline, made false deceptive statements during duty NY . NYC. ADC LAW 11106B. FDNY stated that it was NYC law. When FDNY EMS is called to a city shelter the shelter client had to go to the hospital they had no choice. U.S.C 1985#3. FDNY Alexandria Aurilien deliberately didn't tell the plaintiff when she asked 6 time what was she going to the hospital for. FDNY Alexzander Auriline and black male John Doe di tell the plaintiff she was being transported for the Psych Ward. FDNY male John Doe was very aggressive and intimidating with the plaintiff. The plaintiff was forced and coerced into going to the hospital against her will. Officer James officer Vega, DHS staff Jane doe, FDNY Alexandria Auriline FDNY black male John Doe Conspired together to deprive the plaintiff of rights and privileges secured by the United States Constitution. The plaintiff was intimidated put in fear for her safety if she did not do what they wanted her to do. That she would be arrested. The plaintiff was not a danger to herself or anyone else. Officer James, Officer Vega Nor FDNY where properly trained in the observation of an emotional disturb person. Surveillance footage will show that the plaintiff was not exhibiting any erratic or emotional behavior. From 1 pm – 8:30 pm on 5-29-16. The plaintiff was not a danger to herself or anyone else. NY.STATE Mental Health Hygiene law, EMERGENCY 9.39 FDNY PCR report does not sate that the plaintiff was a danger to herself or anyone else. FDNY PCR report states officer James made the decision to send the plaintiff to Psych Ward, based on documentation he received from DHS shelter staff illegally containing the plaintiff personae information with her written consent. Not the plaintiff emotion behavior DHS Incident reporting 08-003. The defendant FDNY PCR report contains Libel Defamation. Alexandria Auriline states the FDNY found on the scene the plaintiff complaining about being touched during her sleep. NY. NYC. ADC LAW 1116 b. When FDNY arrived the plaintiff was quietly standing against a wall. The plaintiff was not aware FDNY was there for her until she was approached and FDNY

Alexandria Auriline approached the plaintiff and began a conversation, The defendant cannot provide the courts of surveillance footage that support the deceptive documentation.

When the plaintiff arrived at interfaith hospital. Hospital staff deviated from standard hospital procedure. Pursuant to NY Patient bill Of Rights.#1#2#5#6#8#12#13. The plaintiff was not informed of what type of treatment she would receive. The plaintiff was not informed as to what type of doctor would be administering treatment. Interfaith hospital staff approached the plaintiff and asked what she was there for. The plaintiff answered and said she didn't know why she was brought to the hospital ask NYPD. The plaintiff was escorted with no explanation where she was going to interfaith Psych Ward. O By officer James officer Vega, interfaith hospital black female Jane Doe. U.S.C 1985#3 The defendant employees conspired together to deprive the plaintiff of rights and privileges secured by the US Constitution U.S.C. 5th Amendment the plaintiff was searched her personal property taken and illegally detained. After the plaintiff was humiliated embarrassed degraded and demoralized. She was given a Psych-Evaluation. The plaintiff was released clear of any mental health problems in the present or the past. U.S.C. 242 At all time the defendant employees were acting within the scope of their employment at all times they were under the color of the law.

WHEREFORE, Plaintiff Margie Brown Demand relief against the City Of New York, ET,AL in the amount of Two Million Dollars (\$2,000,000.00) in compensatory damages monetary damages and punitive-damages-plus interest and costs as that this Court deems appropriate. And any further relief that this Honorable Court determines necessary and appropriate for

Facts: (what happened?)

See Attach 2 pages.

II.A. Injuries. If you are claiming injuries as a result of the events you are complaining about, describe your injuries and state what medical treatment you required. Was medical treatment received?

Extreme Emotional Distress Mental Anguish Humiliation Embarrassment
Loss of Liberty Loss of Reputation loss of the quality of
life.

III. Relief: State what relief you are seeking if you prevail on your complaint.

Wherefore plaintiff MARQIE Brown Demand relief against the City of NEW YORK ET AL in the Amount of Two million 2,000,000.00 in Compensatory Damages monetary damages and punitive damages plus interest and costs that this Court deem appropriate. And any other further relief this honorable Court determines necessary and appropriate.

I declare under penalty of perjury that on 2-10-17^{LNB}, I delivered this
(date)
complaint to prison authorities at _____ to be mailed to the United
(name of prison)
States District Court for the Eastern District of New York.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: 2-10-17

Marqie Brown
Signature of Plaintiff

Name of Prison Facility or Address if not incarcerated

200 Tillary St
Brooklyn NY 11201

Address

Prisoner ID#



EXHIBIT H

PATIENT NAME: Brown, Monique
ADDRESS: Do
TELEPHONE#

Psychiatric Emergency Department.

DISCHARGE INSTRUCTIONS

Date: 5/29/16

To Whom It May Concern:

This is to certify that Brown, Monique was seen and examined in the Psychiatric Emergency Department.

Discharge instructions are as follows:

PATIENT IS PSYCHIATRICALY CLEARED

NO EVIDENCE OF MENTAL ILLNESS
CURRENTLY OR IN PAST

Medication Lists:

NO MEDICATIONS PATIENT HAS NO MENTAL
ILLNESS

Physician Signature: [Signature]

Print Name: JORDAN

Physicians License Number NY 271711

Department of Psychiatry

Date: 5/24/16

Phone Number 718-613-4199

IMC-PSY042

1545 Atlantic Avenue*Brooklyn, NY 11213
718-613-4000*www.interfaithmedical.com

EXHIBIT K

DATE: 06/08/16 @ 1246
USER: SLOUBEAU

Interfaith Medical Center EDM *LIVE*
TEST SUMMARY REPORT

PAC

Patient: BROWN, MARGIE
MR# I300307115 V# V00819288178
ED Provider: Saha, Amal K, MD

Age/Sex: 45/F

Patient Data

PO BOX 3335
NEW YORK, NY 10027
347-335-3902

Insurance: SELF PAY

Next of Kin: BROWN, MARGIE

Relation: OTHER RELATIONSHIP

Phone: 843-307-5707

PCP:

Family Doctor:

Referring:

General Data

ED Physician: Saha, Amal K, MD, ST
Practitioner:
Nurse: Mary E Antoine, RN

Arrival Date/Time: 05/29/16 - 1556
Triage Date/Time: 05/29/16 - 1633
Date of Birth: 09/26/1970

Stated Complaint: PSYCH EVAL

Chief Complaint: Psychiatric Evaluation

Priority:

Status Event History:

05/29/16 1556 Received
1633 Triage
1648 Registered
1741 With Doctor
2020 Patient Departed
05/31/16 0003 Clean Up

Allergies

Allergy/Adverse Reaction
No Known Drug Allergies

Type	Severity	Date
Allergy		05/29/16

Assessments

05/29/16 1633 Triage Assessment

Marcia Phillips, RN

Language Assistance Needed:

Is Language Assistance Needed? N

Deaf/Hard of Hearing Assistance Needed:

Deaf/Hard of Hearing Assistance Needed? N

Chief Complaint:

Chief Complaint psych evaluation

Objective/Subjective/Comment Data:

Subjective/Objective Comment Data pt brought to ED for psych evaluation, pt had called 911 because thinks someone had assaulted her, according to EMS personnel, had woke and found her chain in her groin area.

pt sts she did not know why she was brought to ED. pt is accompanied by officers from 73rd precinct #30997

Received From:

Arrived From shelter

Mode of Arrival EMS

Vital Sign:

Temperature (Fahrenheit) 98.9

Temperature (Calculated Celsius) 37.16964

Temperature Source Oral

Patient: BROWN, MARGIE

Exhibit G



Exhibit N
PATIENT NAME: Brown, Marcus
ADDRESS: do
TELEPHONE#

Psychiatric Emergency Department

DISCHARGE INSTRUCTIONS

Date: 5/29/16

To Whom It May Concern:

This is to certify that Brown, Marcus was seen and examined in the Psychiatric Emergency Department.

Discharge instructions are as follows:

PATIENT IS PSYCHIATRICALY CLEARED
NO EVIDENCE OF MENTAL ILLNESS
CURRENTLY OR IN PAST

Medication Lists:

NO MEDICATIONS TAKEN HAS NO MENTAL ILLNESS

Physician Signature: [Signature]

Print Name: Jordan

Physicians License Number NY 271711

Department of Psychiatry

Date: 5/24/16

Phone Number 718-613-4199

IMC-PSY042

1545 Atlantic Avenue*Brooklyn, NY 11213
718-613-4000*www.interfaithmedical.com

Exhibit K

Assessment:

Time	Employee	Type	Summary
		ABC	Airway: Patent Breathing: Normal Lung Sounds: Left: Clear Lung Sounds: Right: Clear Skin Color: Normal Skin Temperature: Normal Skin Condition: Normal
		Head To Toe	Head and Neck: Left Eye: Reactive Right Eye: Reactive
		Neurological	AVPU: Alert

Vitals:

May be active until 7:30.

Time	Employee	Summary
15:20:00	Aurelien, * Alexandra	

Treatments/Medications:

Time	Employee	Summary
15:19:00	Aurelien, * Alexandra	Treatment- 1 - BLS Assessment Attempts: N/A Success: Yes Level: BLS

Supply

Qty Supply

EKG Device Incident Number:

FlexFields:

FlexField	Value
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Payer 1 - Is the patient's illness or injury job-related? No

15:19 Flow Chart: Medication 1 - BLS Not Applicable
Assessment - Medication Complication

Narrative History Text:

False deceptive statements, was quite clear but they were there for me

45 YEAR OLD FEMALE FOUND AMBULATORY ON SCENE COMPLAINING OF SHE BELIEVE WHILE SHE WAS SLEEPING SHE THINK SOMEONE REMOVED HER NECKLACE AND PLACED IT IN HER PANTIES AND POSSIBLY TOUCHED WHILE THE PERSON WAS DOING THIS. STATES SHE KNOWS THEY DID NOT PENETRATE HER VAGINA. DHS PROVIDED DOCUMENTATION THAT THERE ARE MULTIPLE ALLEGATIONS ABOUT PEOPLE ASSAULTING HER AT DIFFERENT SHELTERS SO STAFF AND PD WANT PATIENT PSYCH EVALUATED BECAUSE ON CAMERA NO ONE TOUCHING HER ESCORTED BY PD

Auth Signature: No Privacy Sig: No Unable to Sign: No Refuse to Sign: Yes

Signature Image(s):

Authorization Signature

Privacy Notice Signature

Receiving RN / MD Signature - phillips - 05/29/2016 16:21

Technician Signature - Aurelien, Alexandra - 05/29/2016 15:39

Exhibit A

Assessment:

Time	Employee	Type	Summary
		ABC	Airway: Patent Breathing: Normal Lung Sounds: Left: Clear Lung Sounds: Right: Clear Skin Color: Normal Skin Temperature: Normal Skin Condition: Normal
		Head To Toe	Head and Neck: Left Eye: Reactive Right Eye: Reactive
		Neurological	AVPU: Alert

Vitals:

112, may be active until 7:30.

Time	Employee	Summary
15:20:00	Aurelien, * Alexandra	

Treatments/Medications:

Time	Employee	Summary
15:19:00	Aurelien, * Alexandra	Treatment- 1 - BLS Assessment Attempts: N/A Success: Yes Level: BLS

Supply

Qty Supply

EKG Device Incident Number:**FlexFields:**

FlexField Value

Payer 1 - Is the patient's illness or injury job-related? No

15:19 Flow Chart: Medication 1 - BLS Not Applicable
Assessment - Medication Complication**Narrative History Text:**

false deceptive statements, was quite did not know they were there for me

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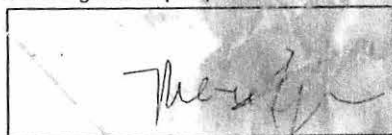
Auth Signature: No Privacy Sig: No Unable to Sign: No Refuse to Sign: Yes

Signature Image(s):

Authorization Signature

Privacy Notice Signature

Receiving RN / MD Signature - phillipus - 05/29/2016 16:22



Technician Signature - Aurelien, Alexandra - 05/29/2016 15:39

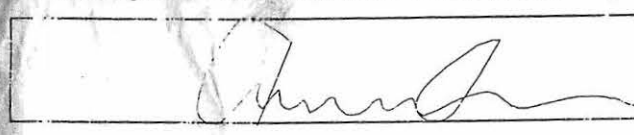


Exhibit A